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UPSC

Day-16

Pat. (10/03/25)

Rani

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(Specimen Answer Booklet - For Practice Purpose Only)

1.

The Directive policy of State policy provide a roadmap for a welfare state, but their non-judicial nature often limits their implementation. In this context, critically examine the conflict between DPSPs and fundamental rights, citing landmark judgements and Constitutional amendments.

Directive policy of State policy (DPSP) confirms the path for social justice as envisioned in preamble Article 36 to 51 provides for the goal of the state, which is fundamental for governance.

In Indian Constitution Fundamental Rights and DPSP both play complementary role to each other aiming political and socio-economic democracy respectively.

DPSP as a roadmap for a welfare state

As per Article-38 the state will promote the welfare of people by securing a social order permeated by justice social, economic and political.

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Article - 29.

- (a) Provisions for adequate means of livelihood for its citizens -
- (b) Equitable distribution of material resources for common good,
- (c) prevention of concentration of wealth.
- (d) Equal pay for equal work for men and women

39(A) → free legal aid and equal justice to poor (42nd Amendment 1978) -

Article - 40 → Guidelines for Village Panchayats.

Article - 41 → To secure Right to work

Article - 42 → Just and humane conditions of work and maternity benefits.

Article - 43.

- (a) → Participation of workers in management of industry.
- (b) → voluntary formation of Co-operative Societies (97th Amendment 2011).

Article - 44.

→ provision of UCC throughout the Country.

Article-45 :- Provide early childhood care and education for all children (0-6) yrs.

Article-46 → promote educational and social upliftment of SC, ST & OBC and other weaker sections.

Article-47 → prohibition of intoxicant
(*) →

Article-48 → prohibition of slaughter of cow and other useful animals.

(4) → protect and improve environment
(42nd Amendment Act 1976)

Article-49 → protect monuments, places of historic importance

Article-50 → To separate judiciary from executive in public services.

Article-51 → to promote international peace.

The justiciability of FR and non-justiciability of DPSP on one hand and moral obligation of state to implement DPSP on the other hand led to the conflict between the two since the ~~can~~ Constitution enactment

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Dynamics of relation between F.R & DPSP.

1951

In Champak Dossal case Supreme Court said F.R would prevail over DPSP.

1967

In Golak Nath case S.C. said that F.R are sacrosanct in nature and hence can't be amended to implement DPSP.

1971

Parliament reacted with 24th & 25th Amendment Act which provides that parliament has power to abridge any F.R by enacting Constitutional amendment Act ↓

It provided that no law which seeks to implement 89(b)(6) of DPSP shall be declared void on the ground of Contravention of Article 14, 19 & 21.

1973

In Keshwanand Bharti case Supreme Court upheld the parliament power but subjected to Basic Structure Doctrine.

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1971

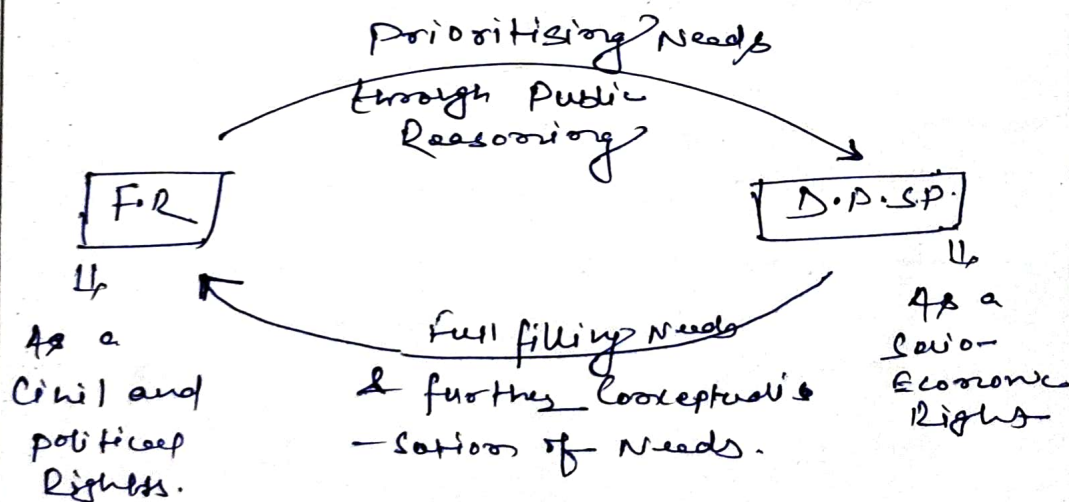
42nd Constitutional Amendment Act gave primacy over all DISPOSABLE F.R.

1980

Minesvara Mills Case, S.C. declined former provision and observed that Indian Constitution is founded on the bedrock of balance between DISPOSABLE F.R.

And this doctrine of harmonious construction is the basic feature of Constitution.

~~Here~~ The goal set out by the directive principle have to be achieved without abrogation of means provided by F.R



Complementary Role of F.R & D.P.S.P.

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Hence, the present position is
that Article 39(b) & (c) have primary over
Article 19(2). Except this, FR enjoy
supremacy over the DPSP. Parliament
can amend FR for DPSP so long it
doesn't damage the Basic Structure.

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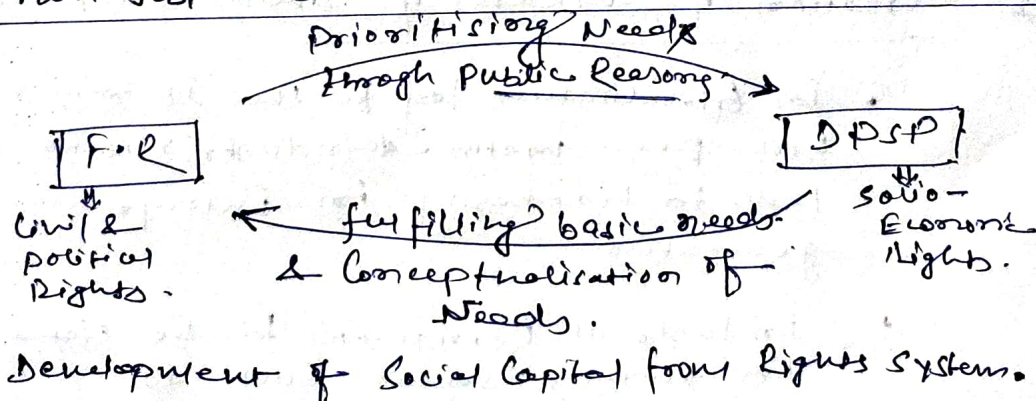
2.

with globalization, economic liberalization and emerging social challenges, do you think the Directive Principles remain relevant today? Critically assess their Contemporary Significance and Suggest how they can be made more effective in the modern policy framework.

As per our Constitution Directive Principles are fundamental for governance. It aims for the Socio-economic democracy of India.

At the time of Independence of society were highly unequal and fragmented and unjust. These consequences led to our constitutional forefathers to defining the goal of Indian state, which were conceptualised throughout the freedom movement.

But the financial and economical constraints led Directive Principles into non-justiciable in nature.



Globalisation and economic liberalisation has shaped the ~~evolution~~ development of social and economical sphere of India.

IT sector boom, led to the rise of middle class and correspondingly the various new societal needs. This led to the evolution of means (F.R) as well as the goal (DPSP).

Contemporary Significance of DPSP

* Social Justice (Article - 38)

- Affirmative action has served its purpose but not achieved its potential in attaining social justice.

↳ Skillings and proper education systems to be developed.

* Creation of means of livelihood (39(a))

- In Globalisation led to the IT boom but pre-mature de-industrialisation led to hampering in Employment generation.

↳ Industrial Reinsurance to be started in various sector such as MSME, Heavy Industry.

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* ~~But~~ Equal distribution of resources and prevention of concentration of wealth (Article 39(b) & (c)) -

- Globalization resulted in raising the inequality in society.
(As per Thomas Piketty 2% people containing 40% wealth of country)

↳ An optimum and efficient taxation system will have to be developed for achieving the above directives principles.

* Equal pay for equal work for men & women (Article 39(d)).

- Pvt. Sector boom but even after this Glass Ceiling preventing the women to take top leadership role.
(As per report 50% MBBS doctors are women but only 18% goes up to top post).

↳ Policy of Affirmative action may break the shackles of Glass Ceiling.
(Bihar Govt various women reservation).

* Free legal aid to poor and Equal justice (39(4)).

- High judicial expenses preventing poor from their justice against the big corporates.

↳ Awareness and institutional judicial outreach may brought justice.

* Right to work (Article-41)

- Globalization resulted economic growth.
Right to work debated in Public
discourse and led to creation
of MNREGA (2006).

↳ Effective resource allocation and
better management will achieve
this principle.

* Uniform Civil Code (Article-44)

- Globalization brought various society
come together and awareness for
societal needs → It necessitates
the needs of UCC.

↳ Confidence of various stakeholders
to be taken for better implementation.

* Early Education and Childhood Care (Art-45)

- Changing technological landscape
necessitates the need of real education
at early age along with adequate
nutritional support.

↳ Bihar Govt ANGANBARI scheme
a better mechanism along with
JEVIRA support.

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* Protect and improve ~~Climate~~ Environment
Article - 48(A).

- Over exploitative use of environment resources resulted in Climate Challenge.
- In the wake of Stockholm Conference 1972 - 42nd Constitutional Amendment incorporated this article.
 - ↳ Spreading awareness campaigns and sustainable use of resources will have to be promoted.
 - ↳ Tax benefit and subsidies to eco-friendly products and industry.

In the wake of globalization society emerged far from the independence time. In these 75 years DRSP secured its purpose ^{well} in incorporating various challenges with changing Geopolitical landscape. And it will be relevant in achieving the goal of VIKSHIT BHARAT too upto 2047.